

Court No. - 32

Case :- WRIT - C No. - 39881 of 2019

Petitioner :- Lauleen Ahmad

Respondent :- State Of U.P. And 02 Others

Counsel for Petitioner :- Vinod Kumar Tirpathi, Manoj Kumar Tripathi

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Shashi Kant Gupta, J.

Hon'ble Neeraj Tiwari, J.

This writ petition has been filed, inter alia, for the following reliefs;

"i. Issue a writ, order or direction in the nature of certiorari quashing the impugned recovery certificate dated 25.03.2018 passed by Executive Engineer, Vidhyut Vitaran Khand, Pashchimanchal Vidhyut Vitran Nigam Ltd. Najibabad, District Bijnor/respondent no.3 (Annexure No.04 to the writ petition).

ii. Issue a writ, order or direction in the nature of mandamus commanding the respondents to permit the petitioner to deposit the rest of balance amount after exact calculation."

Heard the learned counsel for the petitioner and Mr. Pranjal Mehrotra, learned counsel for the electricity department and perused the record.

Learned counsel for the petitioner submitted that neither any copy of provisional assessment order nor any notice was given to the petitioner.

Mr. Pranjal Mehrotra, learned counsel for the Electricity Department is directed to supply a copy of the provisional assessment and notice to the learned counsel for the petitioner today itself.

Learned counsel for the petitioner has submitted that the respondents are taking coercive action against the petitioner without giving any opportunity of hearing and without following the provisions contained under the U.P. Electricity

Supply Code 2005.

Considering the facts and circumstances of the case and taking a lenient view in the matter, we direct the petitioner to appear on 19.12.2019 at 11.00 A.M. before the Respondent No.3, Executive Engineer along with his objection and adduce his evidence, if any, in support of his contention. The Respondent No. 3, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner within a period of four weeks thereafter.

For a period of seven weeks from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner. In case of default in filing the objection/representation, as indicated herein above, the present interim order shall stand vacated automatically.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

It is made clear that in case the petitioner does not appear on the said date fixed, the impugned recovery citation shall stand revived automatically.

With the above observations, the writ petition stands disposed of.

Order Date :- 5.12.2019

Junaid